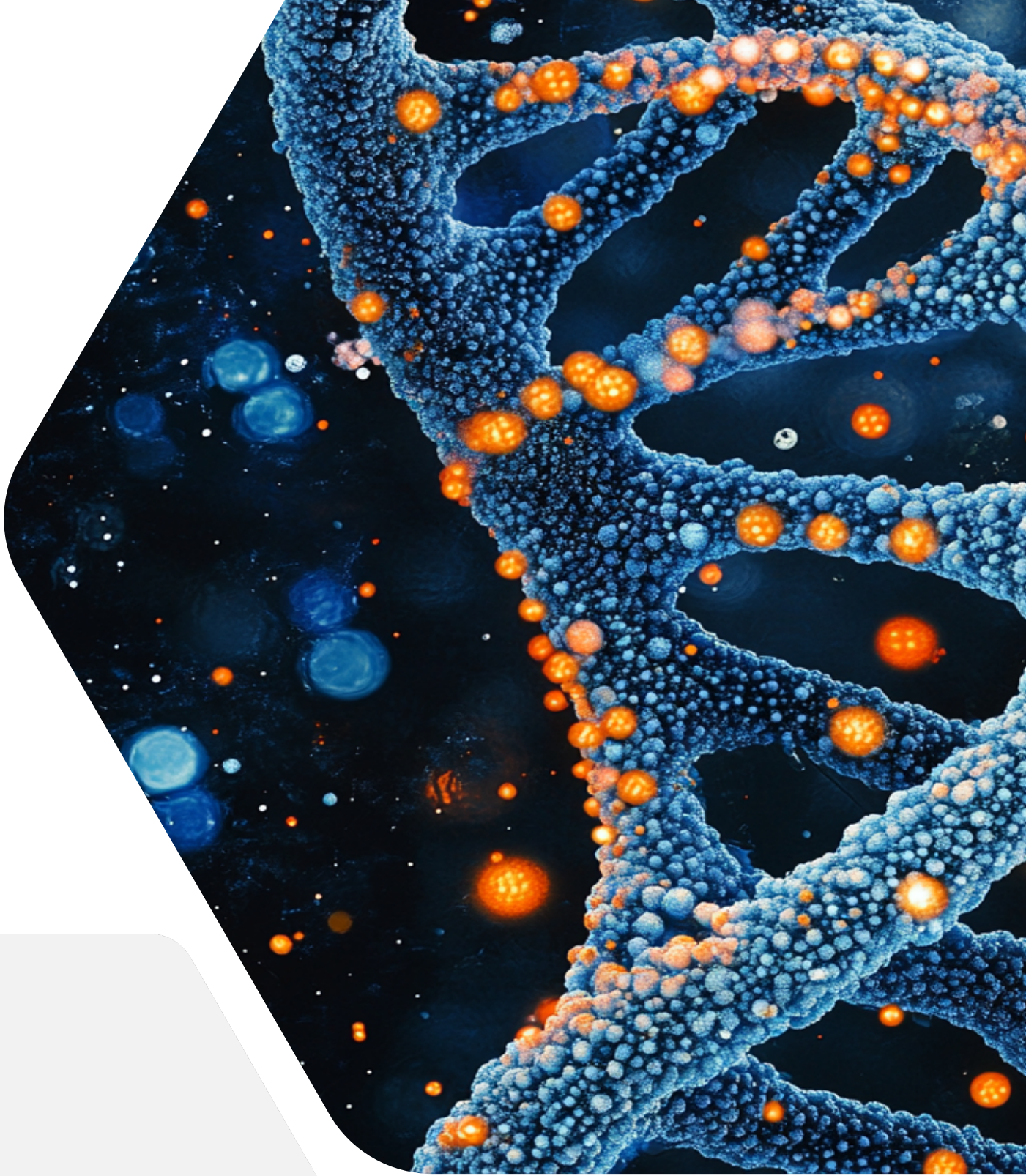




ADVERTISING LEGAL GUIDELINE

ADVERTISING WITH NOVOGENIA PRODUCTS

Novogenia is at the forefront of scientific possibilities, offering established analysis methods such as blood tests, as well as advanced options like genetic analysis and personalized products. As we are in the health sector, there are strict rules for advertising claims that must be observed. Particularly in Germany, there are warning associations that look for unclear or misleading statements and then issue formal warnings.

The Effectiveness of Our Products

It should be mentioned beforehand that we are firmly convinced (and have numerous experiences) that the recommendations we make are effective and consider the most advanced state of science. Unfortunately, what the product can do and what can be claimed in advertising sometimes differs.



How a “cease and desist notice” typically proceeds

All cases have only emerged in GERMANY, so other countries may have different / less stringent rules. So, the following MAY only apply to Germany but are generally a good and careful approach to marketing.

The trigger is always an unauthorized or misleading advertising statement. Such proceedings are typically triggered by widely distributed advertising such as TV, magazine inserts, and social media advertising.

From our experience, mere websites or sales materials like those used in direct sales have not yet been formally warned against. According to the legal associations, these actions are mostly initiated by competitors who want to covertly oppose advertising.

Typically, a letter from the legal association follows, claiming certain statements are misleading to customers; the association demands the signing of a cease and desist declaration, a fee of about €200.00, and a penalty of approximately €5,000.00 if the prohibited advertising statement is used again.

One thus has the choice between a court proceeding or signing the cease and desist declaration and discontinuing the advertisement.

By signing the cease and desist declaration, the objected statements may no longer be used; in a court proceeding, there is a chance that some statements may be prohibited while others may be permitted, which acts as a significant protection for future advertising.

The advantage of a completed court proceeding is that there is legal certainty regarding the advertising statements used.

The risk of litigation costs is explicitly pointed out.

The outcome of a legal dispute depends, considering the precedent of other courts, on the legal view of the court that is locally and materially competent.

In the 4 cases we have dealt with in the last 15 years, the following picture emerges:

- 2 companies signed the cease and desist declaration for potentially anti-competitive statements, were no longer able to advertise, and ceased sales.
- 2 companies let the association sue in court; some, but not all, advertising statements were prohibited, others were allowed. The companies continued sales without the impermissible advertising statements.

If you receive a warning, please report it immediately to Novogenia; we try to support and accompany you as best as possible!

Your Responsibility

Novogenia cannot take responsibility or liability for your advertising statements; all advertising actions and/or competition-relevant statements for our products are thus solely your entrepreneurial risk. We are happy to share our experiences and opinions and support you with warnings; however, we cannot guarantee legal certainty with the information we provide, nor take responsibility for it.

This document contains the best practices we have identified.

Advertising with Blood Tests

Blood tests are widespread and have long been standard, so there are few restrictions here.

Permissible advertising statements are based on the following content:

Product Description

- We test blood.
- We diagnose deficiencies.
- Comprehensive report
- Medical findings

Result Interpretations

- We provide micronutrient recommendations.
- We provide dietary recommendations.
- We personalize supplements based on the results.

Promises of Results

- Solution for your symptoms

Advertising Claims

- I am often tired; the test identified iron deficiency in me and helped me.
- Symptoms of deficiencies that we test are allowed.
- Source of symptoms from an official body.
- Reference the source (*The German Medical Association mentions fatigue as one of the symptoms of iron deficiency).
- Sample collection was super easy, the report is understandable, and I have recommended it further.

Advertising with DNA Tests

DNA tests are new opportunities and, unfortunately, still far from standard in all medical practices. Warning associations often focus on this fact because they generally criticize technologies not considered useful and sensible by more than 50% (i.e., the majority) of experts/doctors. This naturally creates a barrier to entry for any new technology that must be navigated. Therefore, warning associations pay particular attention to DNA analysis programs.

From the perspective of legal associations, DNA analyses typically divide into two components:

Typically unchallenged: The analysis of genetic traits

- Analysis and comparison of genetic analysis results with current science
- Determination of genetic traits

Typically challenged: The action program based on it

- Dietary plans based on genes
- Exercise plans based on genes
- Micronutrient recommendations based on genes

The analysis and genetic traits are not the point of criticism. These are the recommendations derived from them. This may seem nonsensical upon closer inspection, but it affects as follows:

- Genetic test proves: Folic acid is ineffective
Legal association: Allowed. Studies prove it.
- Our recommendation: Do not take folic acid but the effective form methylfolate
Warning association: Where is the study proving that this recommendation works?

And fundamentally, the legal association is right. There are only a few scientists whose careers depend on their research, who invest their time and energy in such logical research. Although it is completely logical that this course of action leads to success, the lack of science to it can be criticized.

Another example:

- Genetic test shows that you gain weight from fat calories, not from carbohydrate calories.
Legal association: Allowed. Studies prove it.
- Our recommendation: Eat more carbohydrates and less fat to lose weight.
Legal association: Where is the study proving that this recommendation works?

Therefore, it is important to understand our programs in the right context:

The scientific part of the analysis is the evaluation of genes and the determination of genetic traits.

The logical conclusion part is the action recommendations we derive, which are logically derived but do not have the same scientific basis as the first part.

It is important that you understand this fact and communicate it accurately in advertising.

The safe option

Advertising with Genetic Traits

The safe version of advertising focuses only on statements that pertain to genetic traits. Here are the uncritical statements along with marked critical statements as examples:

- We analyze your genes to determine whether you gain weight from fats or carbohydrates
- You find out whether you respond better to exercise, or calorie reduction based on your genes
- You learn whether your body can activate folic acid to make it effective
- You discover what talents your body has in competitive sports and how well your muscles respond to strength training

This limitation is important but not necessarily a hindrance with clear communication. The statement: "to find out if one gains weight from fat calories" is almost as compelling as: "to find out that one gains weight from fat calories and then being told to eat less fat."

The bolder Option (we follow this approach)

Clear Communication on the Scientific Nature of the Elements

In this variant, the genetic test itself is advertised as above. Action recommendations are clearly promoted as logical conclusions and not scientifically confirmed. However, disclaimers are critically viewed by legal associations and not always accepted.

Here are some examples:

- We analyze your genes and based on current science, determine whether you gain weight from fats or carbohydrates.
Based on this, we create logical conclusions and nutritional plans to utilize these insights.*
- You find out whether your genes make you more responsive to exercise or calorie reduction.
Based on this, we create logical conclusions and training plans to utilize these insights.*
- You learn whether your body can activate folic acid to make it effective.
Based on this, we recommend alternative micronutrients you should take instead.*
- You discover which talents your body has in competitive sports and how well your muscles respond to strength training.
Based on this, we create a customized training plan to utilize these insights.*

Scientific Information *

That genes affect body weight, the effectiveness of certain weight loss strategies, and the ability to deal with certain nutrients is supported by multiple scientific studies for each gene. Therefore, the genetic traits determined by this analysis are considered scientifically confirmed.

The adaptations of micronutrient dosing or dietary recommendations derived from these scientific findings require the so-called gold standard for clear scientific proof – these are randomized, placebo-controlled studies. These already exist for folic acid and vitamin B2 but have not yet been published for all genetic effects in this program. For this reason, the genetic adaptation of micronutrient dosing and food evaluation should be considered logical conclusions and not scientifically proven. Your optional supplements are thus scientifically tailored to your lifestyle, your blood values, and additionally experimentally to your genes – depending on your choice of analyses.

This information structures the advertising content as follows:

Product Description

- We test DNA.
- We match results with the current state of science.
- Insights into the role your genes play: - What makes you gain weight
Which vitamins may be ineffective - Whether you have genes that are more successful in certain sports - Whether you have genes that affect your skin
- Comprehensive report explaining the results to you.

Result interpretations and Promises of Effect

- Sensitive and critical:
- We give dietary supplement recommendations
- We give dietary recommendations
- We personalize dietary supplements based on the results

Advertising Statements

- Genes influence your body - Affect the effect / Play a role in how dietary fat impacts your body weight - This study says this and that about your gene type - Your genes contribute to these and these traits
- We test your genes and show you how they affect you (Based on this and that study)
- You receive a report with X pages explaining how your genes affect you

Testimonial Advertising Statements

- I gain weight easily, someone else eats the same as me and doesn't gain weight, the genetic test told me why
- I wanted to know if folic acid might not work due to my genes.
- Wanted to know if my genes have given me more muscle fibers suitable for endurance or strength sports.
- Sensitive and critical:
- We help you lose weight
- You receive a dietary plan based on your genes
- We personalize dietary supplements according to your genes

What we consider the best structure for this bolder approach:

Description of the DNA test and traits

- We Test your genes
- We tell you about your traits X, Y and Z.
- This is based on science
- The report has X pages

Based on this, we draw logical conclusions and action plans *

This is what you get out of it

- We change your diet
- We change your supplementation
- We change your training

Disclaimer *

Advertising with personalized Supplements

The European union has created a clear legal framework regarding the claims that can be made about the effects of dietary supplements, which is helpful for us. The so-called Health Claims precisely define which effects can be promoted for each active ingredient. A list of the Health Claims for the active ingredients can be found in the reports.

This also means that no matter how much science exists on an effect, it is not permissible to promote it in advertising until the Health Claim has been approved by the EFSA. Therefore, limit yourself to the rather extensive list of permissible claims.

Other regulations may exist in other territories, which are not covered by this document.

Topic: Personalization

Personalization based on lifestyle or blood values is generally unproblematic. It only becomes critical when personalizing based on genetic analysis due to the reasons described above. For this reason, there are two variants:

The safe variant:

- We personalize according to your lifestyle and diet
- We personalize according to your blood values

The more daring variant:

- We personalize according to your lifestyle and diet

- We personalize according to your blood values
- We personalize logically/experimentally based on your genetic analysis*

Disclaimer

This information organizes the advertising content as follows:

Product Description

- X vitamins, packaged in handy daily pouches
- Optimized absorption through good raw materials and pellet format
- Personalized based on blood – Scientific lab results lead to personalization
- Personalized based on diet and lifestyle – Questionnaire leads to personalization

Logical conclusions/Experimental Stage*

- Studies suggest that genes can influence the effect of nutrients.
- Not yet confirmed by gold standard studies.

Promises of Effect

- See Health Claims
- Customer Statistics
- X % would recommend it.
- X % have reordered.
- X % are satisfied.

Testimonials – reposted by you

- I take it because I have dry skin.
- Because Health Claim: Helps maintain normal skin (must be a zinc deficiency effect – recognized source (EFSA/Medical Association etc.)).

- I had a deficiency; it was recognized and thanks to the product everything is back to normal.
- I am satisfied, have recommended it, etc.
- I want to strengthen my immune system.
- Because Health Claim: Contributes to a normal immune system.

Handling Customer Reviews

If you have a customer review system, such as on your website, you do not have control over whether a customer makes unauthorized statements (e.g., "Product X cured me"). This is generally permissible but must be handled with care.

If you have your own system that you can moderate:

- Make it clear that these are customer opinions and that you do not endorse them.
- Statements that violate the Health Claims Regulation should be deleted (unauthorized efficacy claims).
- If a review is significantly incorrect, a corrective response from the company should be attached.

If you have an external system that you CANNOT moderate:

- Make it clear that these are customer opinions and that you do not endorse them.
- Incorrect statements should not be deliberately filtered or highlighted.
- If a review is significantly incorrect, a corrective response from the company should be attached if possible.